		Here, Alliance Funding Group stated in its notice of opposition to claim of exemption (wage garnishment) that it was mailed the notice of claim of exemption on March 20, 2025. It is unclear whether Alliance Funding Group timely filed its notice of opposition to claim of exemption to the levying officer. The notice of opposition to claim of exemption and notice of hearing on claim of exemption were dated April 1, 2025, which is 10 days from March 20, 2025. (ROA 40 & 41.) But, the proof of service only indicated service on the Mcaninch. (ROA 38.) In any event, Alliance Funding Group failed to give at least 16 court days plus five calendar days' notice to the levying officer and Mcaninch and did not seek to shorten the minimum notice periods. (Code Civ. Proc., § 1005, subd. (b).) If Alliance Funding Group filed the notices with the levying officer after April 1, 2025, the statutory procedure mandates the levying officer to release the wages. (Code Civ. Proc., § 706.105, subd. (f).) Alliance Funding Group untimely filed the notice of hearing on claim of exemption and notice of opposition to claim of exemption (wage garnishment) on April 7, 2025 with the court. Because the notices were untimely filed, Alliance Funding Group waived its rights to object to the claim of exemption. (See *Westervelt v. Robertson* (1981) 122 Cal.App.3d Supp. 1, 9-10 [construing predecessor statute to Code of Civil Procedure section 706.105].) Accordingly, Mcaninch's claim of exemption is granted. The levying officer is directed to release any earnings held to the judgment debtor. The Clerk shall transmit a certified copy of this order to the levying officer: Levying Office, Sheriff's Office, 9425 Penfield Ave., Room 1100, Chatsworth, CA 91311. Alliance Funding Group shall give notice of the ruling.
58	Tan v. Burns 30-2025-01471598	**NO TENTATIVE RULING**